

No. _____

In the Supreme Court of the United States

CAPITAL CASE

EXECUTION SCHEDULED: SEPTEMBER 30, 2026, AT 10:00 AM (CDT)

KENNETH NELSEN, WARDEN,
APPLICANT

v.

CHRISTA PIKE,
RESPONDENT

**APPLICATION TO VACATE STAY
OF EXECUTION OF DEATH SENTENCE**

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To the Honorable Brett M. Kavanaugh, Associate Justice of the Supreme Court of the United States and Circuit Justice for the Sixth Circuit:

Applicant Kenneth Nelsen, Warden, respectfully requests that the Court vacate the stay of execution entered by a divided panel of the Sixth Circuit. *In re Pike*, No. 26-5864 (6th Cir., Order, Sept. 30, 2026); Order, D.10.¹ Respondent Pike is a Tennessee inmate scheduled for execution by lethal injection today at 10:00 a.m. (CDT), for the brutal murder of nineteen-year-old Colleen Slemmer. The Sixth Circuit’s order—entered less than two hours before Pike’s scheduled execution—blocks the State’s enforcement of a thirty-year-old criminal judgment for the sole purpose of the Court to consider whether Pike’s Rule 60(b) motion for relief from judgment is properly considered a second or successive habeas petition.

This Court should vacate the stay. The Sixth Circuit granted a stay—that Pike did not even request—without determining that Pike is likely to succeed on the merits and without addressing the last-minute nature of her Rule 60(b) motion. “Even if the Sixth Circuit believed that the . . . issue was difficult, that belief still would not have been a sufficient reason to grant a stay. Under the traditional stay factors, a petitioner is required to make a strong showing that he is likely to succeed on the merits.” *Price v. Dunn*, 587 U.S. 999, 1004-05 (2019) (cleaned up). And Pike is *not* likely to succeed on the merits because, as Judge Griffin explained in dissent, Pike’s Rule 60(b) motion is a second and successive habeas petition in disguise that presses

¹ Citations are to the docket entries in the Sixth Circuit are to D. and the docket entry number.

a claim she already unsuccessfully presented. *See Gonzalez v. Crosby*, 545 U.S. 524, 532 (2005).

Pike filed her Rule 60(b) motion yesterday, even though the basis for her motion arose more than a month ago. This type of gamesmanship is familiar in capital litigation. *See, e.g., Price*, 587 U.S. at 1008 (Thomas, J., concurring in denial of certiorari). But here, the Sixth Circuit rewarded it. The State’s strong interest in finality and the surviving victims’ right to closure require rejection of Pike’s attempt “to interpose unjustified delay.” *Bucklew v. Precythe*, 587 U.S. 119, 150 (2019). As Colleen’s mother recently said, “Thirty-one years is long enough.” This Court should vacate the stay.

BACKGROUND

On January 12, 1995, Christa Pike beat, tortured, and killed Colleen Slemmer because Pike “just felt mean that day.” *State v. Pike*, 978 S.W.2d 904, 908 (Tenn. 1998). Pike cut Colleen’s throat six times, struck her in the back with a meat cleaver, and crushed her skull with a piece of asphalt. *Id.* at 910-11. A jury convicted Pike of first-degree murder based on overwhelming evidence of guilt, including a detailed confession, and sentenced her to death on the strength of multiple aggravating factors. *Id.* at 910, 912, 914. The Tennessee Supreme Court affirmed Pike’s convictions and sentence in 1998. *Id.* at 914.

Pike then unsuccessfully sought state post-conviction relief. *Pike v. State*, No. E2009-00016-CCA-R3-PD, 2011 WL 1544207 (Tenn. Crim. App. Apr. 25, 2011), *perm. app. denied* (Tenn. Nov. 15, 2011). The post-conviction court rejected her contention

that her trial counsel were ineffective for failing to investigate and present additional mitigating evidence of her childhood, including sexual abuse, at sentencing. Order, R.9-5, 4435-39, 4463-77.² The post-conviction court did so on grounds that have nothing to do with the credibility of Pike’s abuse allegations. The court held that “the jury’s verdict would not have been affected by the mitigating evidence now offered due to the strength of the facts of this case for guilt and the strength of the aggravating factors.” *Id.*, 4477. The court explained that “[e]ven assuming that all the evidence” Pike presented on post-conviction review “had been presented to the jury,” it could not “find that the jury’s sentencing verdict would have been any different.” *Id.* The court further determined that much of Pike’s additional evidence was cumulative of evidence her counsel presented and that some of it “would have included some very negative information about the petitioner” or opened the door to damaging rebuttal. *Id.*

The Tennessee Court of Criminal Appeals affirmed on exactly these grounds, holding that “based upon the clear finding by the trial court that the mitigation evidence which was omitted would not have outweighed the aggravating factors, the Petitioner is essentially precluded from establishing prejudice.” *Pike*, 2011 WL 1544207, at *52.

Applying the deferential review applicable under 28 U.S.C. § 2254(d) to the state-court adjudication, the federal district court rejected Pike’s ineffective-

² Record citations, referenced as R., are to the docket entries in the district court. *See Pike v. Freeman*, No. 1:12-cv-00035 (E.D. Tenn.).

assistance claim related to mitigation when denying Pike’s habeas petition. *Pike v. Freeman*, No. 1:12-cv-00035, 2016 WL 1050717, at *11-16 (E.D. Tenn. Mar. 11, 2016).

On appeal, the Sixth Circuit affirmed the denial of federal habeas relief, noting that “none of the evidence Pike now points to substantially differs from the mitigation case that was presented to the jury.” *Pike v. Gross*, 936 F.3d 372, 379-82 (6th Cir. 2019). Even if the jury had heard everything Pike now says it should have, “the sheer weight and degree of aggravation evidence before the jury outweighs the mitigation evidence,” because her proffered evidence was “mostly cumulative and insufficient to overcome the heinous nature of her crime.” *Id.* at 383.

On September 30, 2025, the Tennessee Supreme Court set Pike’s execution for September 30, 2026. Order, *State v. Pike*, No. M2020-01156-SC-DPE-DD (Tenn. Sept. 30, 2025).³

On June 12, 2026, Pike filed a motion with the Tennessee Supreme Court, asserting facial and as-applied challenges to Tennessee’s lethal injection protocol and requesting the appointment of a special master “to develop the facts to support these claims.” Order, *State v. Pike*, No. M2020-01156-SC-DPE-DD (Sept. 23, 2026). Citing a history of rape and sexual abuse, Pike argued that placing her, “as the lone female in a vulnerable position surrounded by male corrections officers during the last days of her life will trigger her PTSD and result in a torturous execution or mental decompensation to the point she will be incompetent to be executed.” Motion, *State*

³ This order, as well as subsequent filings related to Pike’s attempt to stay the order, are publicly available at <https://pch.tncourts.gov/>.

v. Pike, No. M2020-01156-SC-DPE-DD (Tenn. Jun. 12, 2026). The Tennessee Supreme Court appointed a special master to conduct an evidentiary hearing and make findings on Pike’s claims relating to her mental struggles and sexual abuse. Order, *State v. Pike*, No. M2020-01156-SC-DPE-DD (Tenn. Jul. 10, 2026).

At the August 13, 2026 hearing, during argument related to Pike’s mental health claims and sexual abuse, the State’s attorney stated:

“The State does not dispute the terrible things that Ms. Pike suffered. I think everybody in this courtroom wishes that those things had never happened to Ms. Pike. I think we all wish that we were not here today and that she was not on death row And so it’s certainly not the State’s intention to try to minimize the suffering that Ms. Pike has experienced.”

D.9-2, 82-83.

The special master and the Tennessee Supreme Court ultimately rejected all of Pike’s claims. Order, *State v. Pike*, No. M2020-01156-SC-DPE-DD (Sept. 23, 2026). Pike then filed an application for stay of execution and petition for writ of certiorari, which this Court denied on September 29, 2026. Order, *Pike v. Tennessee*, Nos. 26A414, 26-5696 (U.S. Sept. 29, 2026).

Later that day—hours before her scheduled execution—Pike filed a motion for relief from judgment under Fed. R. Civ. P. 60(b). Motion, R.116. Relying on the State’s above August 2026 statement regarding purported abuse committed against Pike as a child, she sought to reopen her petition to relitigate the lower federal courts’ merits-rejection of her claim that trial counsel provided ineffective assistance at sentencing. In Pike’s view, the above-quoted characterization of her prior reports of

sexual abuse differs from that offered by the State on post-conviction review⁴ and qualified as extraordinary circumstances for reopening her concluded habeas petition and relitigating the merits of her mitigation-related ineffective-assistance claim.⁵

The State filed a motion to transfer Pike’s motion to the Sixth Circuit, as a second or successive habeas corpus petition. Motion, R.118. By order filed September 29, 2026, the district court granted the State’s motion and transferred Pike’s motion to the Sixth Circuit as a second or successive habeas petition. Order, R.119. Pike filed a motion to remand.

Although Pike did not ask for a stay of execution, a divided panel of the Sixth Circuit—at 8:17 a.m. CDT on September 30, 2026—granted a “short stay of execution in order to properly analyze the parties’ fully briefed arguments and resolve the issues on the merits,” without analyzing all the relevant factors for granting a stay of execution. D.10-2.

Judge Griffin dissented. D.10-2, 4-7. As he explained, Pike’s claim fails under 28 U.S.C. § 2244(b)(1) because she asserts “a claim . . . that was presented in a prior application” for habeas corpus relief—“the ineffective assistance of counsel at the sentencing stage.” *Id.*, 6. At bottom, Pike’s “claim is that the State’s recent remarks undermine the state court’s prejudice determinations.” *Id.* But “[w]hether the state

⁴ Pike did not testify at the evidentiary hearings on her post-conviction petition conducted in 2007 and 2008, nor did she testify at the more recent hearing on her stay motion. Instead, other witnesses testified in those proceedings about Pike’s reports of abuse.

⁵ On September 28, 2026, Pike moved the Tennessee Supreme Court to recall the 2011 mandate in her state post-conviction appeal on essentially the same grounds. That motion was denied. Order, *Pike v. State*, No. E2009-00016-SC-R11-PD (Tenn. Sept. 29, 2026).

court's application of federal law or view of the facts was unreasonable was the whole merits decision." *Id.* And when a Rule 60(b) motion "attacks the federal court's previous resolution of a claim *on the merits*," it is subject to the procedural bar on second or successive petitions. *Gonzalez v. Crosby*, 545 U.S. 524, 532 (2005). Accordingly, Judge Griffin would "deny Pike's Motion to Remand and dismiss Pike's second or successive application pursuant to AEDPA." D.10-2, 6.

REASONS FOR VACATING THE STAY OF EXECUTION

This Court has long concluded that a stay of execution is an equitable remedy, and that "equity must be sensitive to the State's strong interest in enforcing its criminal judgments without undue interference from the federal courts." *Hill*, 547 U.S. at 584. Indeed, "[b]oth the State and the victims of crime have an important interest in the timely enforcement of a sentence." *Id.* For this reason, even for a "short stay," a stay of execution requires "a showing of a significant possibility of success on the merits." *Id.*

"A court considering a stay must also apply 'a strong equitable presumption against the grant of a stay where a claim could have been brought at such a time as to allow consideration of the merits without requiring entry of a stay.'" *Id.* (quoting *Nelson*, 541 U.S. at 650). "If litigation is allowed to proceed, federal courts can and should protect settled state judgments from undue interference by invoking their equitable powers to dismiss or curtail suits that are pursued in a dilatory fashion or based on speculative theories." *Bucklew*, 587 U.S. at 150-51.

The Sixth Circuit should not have granted a stay here, as Judge Griffin’s dissent explains. Upon a proper weighing of the relevant factors, Pike is not entitled to a stay of execution.

A. Pike is not likely to succeed on her motion for relief from judgment.

To start, Pike is not likely to succeed in the ultimate resolution of her Rule 60(b) motion because her motion is nothing more than an attempt to relitigate the merits of her rejected mitigation-related ineffective-assistance claim. Nothing supports a stay of execution—“short” or otherwise—because Pike’s construed second or successive petition is barred by 28 U.S.C. § 2244(b)(1). The State can show a likelihood of success in that review.

Gonzalez v. Crosby, 545 U.S. 524 (2005), clearly disallows Pike’s effort to smuggle a second or successive petition into a motion for relief from judgment. It is blackletter law that a motion for relief from judgment in a habeas case that “attacks the federal court’s previous resolution of a claim *on the merits*” “impermissibly circumvent[s]” statutory limitations on second or successive habeas petitions. *Id.* at 532 (citing 28 U.S.C. § 2244(b)(3)) (emphasis in original). Try as she might to show otherwise, this describes Pike’s motion to a T. Her Rule 60(b) motion is not a challenge to “some defect in the integrity of the federal habeas proceedings.” *Id.* It is a request for relitigation of a federal claim *on the merits* based upon what she believes to be new evidence—a supposed “concession” by the State. Motion, R.116, 13534. That is not the proper subject of a Rule 60(b) motion.

And this purported concession is not even new evidence; it has no relationship to the ineffectiveness claim previously rejected. Pike claims that a sympathetic statement made by counsel for the State in a state-court hearing on her stay motion conceded instances of childhood abuse that she reported during state post-conviction review, purportedly contrary to arguments advanced by the State on collateral review. She suggests that but-for the State's skepticism of her credibility, the state post-conviction court would have accepted her claim that her counsel was ineffective for failing to present mitigation evidence of childhood abuse at sentencing. The state court, however, rejected Pike's claim for reasons that have nothing to do with Pike's credibility or the veracity of her allegations regarding childhood abuse. The federal courts on habeas review likewise rejected Pike's claims on a different basis. Any statements made by the State regarding Pike's credibility have no relevance to the basis for the denial of her claim.

Even assuming the State made some sort of concession in the recent evidentiary hearing, there too the State's view of Pike's childhood abuse played no role in the consideration of the claims she raised at that hearing. As reflected in a full review of counsel's closing arguments, the State advocated that Pike was not entitled to a stay of execution notwithstanding evidence presented on her allegations of childhood abuse. D.9-2. That argument is entirely consistent with the basis for the earlier denials of Pike's mitigation-related ineffective-assistance claim by both the federal district court and the Sixth Circuit.

In short, Pike’s Rule 60(b) motion is a second or successive motion in disguise, and regardless, the State’s expression of sympathy in the face of Pike’s unsupported stay request created no “extraordinary circumstance” for successive habeas review on a claim previously rejected upon full merits review. Pike’s remanded request for post-judgment relief will ultimately prove unsuccessful and her claim is not certworthy. Both weigh mightily in favor of vacating the stay of execution.

B. The Remaining Stay Factors Compel a Vacatur of the Stay of Execution.

Pike’s abusive, tactical delay is reason enough to vacate the stay. “[T]he last-minute nature of an application that could have been brought earlier, or an applicant’s attempt at manipulation, may be grounds for denial of a stay.” *Bucklew*, 587 U.S. at 150 (cleaned up). It is well known that “capital petitioners might deliberately engage in dilatory tactics to prolong their incarceration and avoid execution of a sentence of death.” *Rhines v. Weber*, 544 U.S. 269, 277-78 (2005). “[I]t is the same strategy adopted by many death-row inmates with an impending execution: bring last-minute claims that will delay the execution, no matter how groundless.” *Price v. Dunn*, 587 U.S. 999, 1008 (2019) (Thomas, J., concurring in denial of certiorari). Federal courts accordingly apply “a strong equitable presumption against the grant of a stay where a claim could have been brought at such a time as to allow consideration of the merits without requiring entry of a stay.” *Nelson v. Campbell*, 541 U.S. 637, 650 (2004).

That presumption should foreclose a stay here when Pike waited 47 days after the so-called “concession,” until the eve of her schedule execution date, to seek relief

from her judgment. She could have more promptly sought post-judgment relief in the preceding 47 days. Yet she waited until the very last possible moment to seek relief under Rule 60(b) and further delay justice. And it worked: The Sixth Circuit granted a stay to give it time to consider her arguments. “The proper response to this maneuvering is to deny [her] meritless request[] expeditiously” and vacate the stay. *Price*, 587 U.S. at 1008.

Importantly, the harm a stay causes Colleen Slemmer’s family weighs heavily in favor of vacatur. The State and crime victims have a “powerful and legitimate interest in punishing the guilty.” *Calderon v. Thompson*, 523 U.S. 538, 556 (1998) (cleaned up). They also “have an important interest in the timely enforcement of a [death] sentence.” *Bucklew*, 587 U.S. at 149 (cleaned up); see Tenn. Const. art. I, §35 (providing constitutional right to crime victims). “Only with an assurance of real finality can the State execute its moral judgment in a case” and “the victims of crime move forward knowing the moral judgment will be carried out.” *Calderon*, 523 U.S. at 556. “To unsettle these expectations is to inflict a profound injury.” *Id.*

That injury is very real for Colleen’s family. Slemmer’s mother and stepfather, May and Raul Martinez, have traveled to Tennessee for Pike’s execution. Anthony Austin, *Colleen Slemmer’s family heads to Tennessee ahead of Christa Pike’s execution*, First Coast News (Sept. 28, 2026), <https://tinyurl.com/yw2p9nyt>. For her mother, “Pike’s conviction and sentencing were only the beginning of a decades-long nightmare.” Steven Hale, *Tennessee Prepares to Execute Christa Pike for the Murder of Colleen Slemmer*, Nashville Banner (Sept. 14, 2026), <https://perma.cc/LK4T-LFP2>.

She recently explained that “she hoped witnessing the execution herself would quiet a fear of Pike that has stayed with her for decades.” *Id.* And her stepfather explained that he “just want[s] to see it happen” because “[t]hat’ll be the final chapter of this case closed.” Anthony Austin, *31 Years of Fighting: Colleen Slemmer’s parents say they’ll skip mortgage to watch her killer die*, First Coast News, (Sept. 3, 2026), <https://tinyurl.com/3u5fccry>. May Martinez put it best: “Thirty-one years is long enough to wait.” Keith Sharon, *Remembering Colleen Slemmer, the teenager killed by Christa Pike*, The Tennessean (Sept. 28, 2026), <https://perma.cc/R9LZ-BVEN>. It is far past time for Colleen’s family to receive the closure they seek.

The public interest further tips the balance against a stay and in favor of a vacatur. Thirty-one “years after [Pike’s] capital sentence . . . both the state and the public have an interest in finality which, if not deserving of respect yet, may never receive respect.” *Workman v. Bell*, 484 F.3d 837, 842 (6th Cir. 2007).

The Court should vacate the stay of execution to avoid rewarding Pike’s abusive delay tactics, to prevent further trauma to Colleen’s family, and to protect Tennessee’s grave sovereign interest in the execution of its exhaustively reviewed judgment.

Respectfully submitted,

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PROOF OF SERVICE

I certify that a true and exact copy of the foregoing document was emailed to petitioner's counsel, Stephen Ferrell, at Stephen_Ferrell@fd.org, on September 30, 2026, and a paper copy was also sent by first-class U.S. Mail to Mr. Ferrell, at 800 S. Gay Street, Suite 2400, Knoxville, TN 37929, on September 30, 2026.

s/ John H. Bledsoe
John H. Bledsoe

CERTIFICATE OF WORD COUNT

I certify that the accompanying brief in opposition, which was prepared using Century Schoolbook 12-point typeface, contains 3,263 words, excluding the excepted parts of the document. This certificate was prepared in reliance on the word-count function of the word-processing system (Microsoft Word) used to prepare the document.

s/ John H. Bledsoe
John H. Bledsoe